

The Code of Civil Procedure (Rajasthan Amendment) Act, 1952

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State of Rajasthan - Act

The Code of Civil Procedure (Rajasthan Amendment) Act, 1952

RAJASTHAN

India

The Code of Civil Procedure (Rajasthan Amendment) Act, 1952

Act 20 of 1952

Published on 1 January 1952

Commenced on 1 January 1952

[This is the version of this document from 1 January 1952.]

[Note: The original publication document is not available and this content could not be verified.]

The Code of Civil Procedure (Rajasthan Amendment) Act, 1952

Rajasthan Act

No. 20 of 1952

Published in the Rajasthan Gazette (Rajpatra) No. 60, Part 4-A, dated June, 14, 1952.

[Received the assent of the President on the 14th day of April, 1952].

An Act to amend the Code of Civil Procedure, 1908 in its application to Rajasthan

Whereas, it is expedient for the purpose hereinafter appearing to amend the Code of Civil Procedure, 1908, in its application to the State of Rajasthan;

It is hereby enacted as follows:-

1.

Short title.

- This Act may be called the Code of Civil Procedure (Rajasthan Amendment) Act, 1952.

2.

Insertion of new Section 48-A.

- After Section 48 of the Code of Civil Procedure, 1908 (Act No. 5 of 1908), in the application thereof to the State of Rajasthan, the following section shall be, and be deemed always to have been inserted, namely:-

"48-A. Varied application of Section 48. - For the purposes of the application of Section 48 to the State of Rajasthan:-

(i)

a decree, made before the twenty-fifth day of January, 1950, in those parts of Rajasthan where a corresponding provision did not then exist, shall, unless it shall have become time barred or otherwise infunctuous before the said day in accordance with any law then prevailing in those parts, be deemed to have been made on the said day, and

(ii)

where a decree might have been made before the twenty-fifth day of January, 1950, in those parts of Rajasthan where a corresponding provision then existed, with a period longer than twelve years provided therein such longer period or the period of twelve years from the said day whichever expires first shall be the period after which, according to Section 48, no order for execution shall be made."

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